

Opinion of SOTOMAYOR, J.

was not “attempting to prevent illegal entry” or otherwise engaged in activities with a “strong connection to national security.” *Ibid.* Agent Egbert was aware (because Boule had told him earlier in the day and again at the scene) that the foreign national arriving at the inn had already entered the United States by airplane and had been processed by U. S. customs at the airport in New York the previous day.

Nor does this case present special factors similar to those that deterred the Court from recognizing a *Bivens* action in *Ziglar*. In that case, foreign nationals who had been unlawfully present in the United States brought a *Bivens* action against three “high executive officers in the Department of Justice” and two wardens of the facility where they had been held. *Ziglar*, 582 U. S., at 126. The Court reasoned that allowing the plaintiffs’ claims to proceed against the executive officers “would call into question the formulation and implementation of a general policy,” and that the discovery and litigation process would “border upon or directly implicate the discussion and deliberations that led to the formation of the policy in question,” thereby implicating sensitive national-security functions entrusted to Congress and the President. *Id.*, at 141. If *Bivens* liability were imposed, the Court explained, “high officers who face personal liability for damages might refrain from taking urgent and lawful action in a time of crisis,” and “the costs and difficulties of later litigation might intrude upon and interfere with the proper exercise of their office.” *Ziglar*, 582 U. S., at 145.

Here, Boule plainly does not seek to challenge or alter “high-level executive policy.” *Id.*, at 140. Allowing his claim to proceed would not require courts to intrude into “the discussion and deliberations that led to the formation” of any policy or national-security decision or interest. *Ibid.* Agent Egbert, a line officer, was engaged in a run-of-the-mill inquiry into the status of a foreign national on U. S. soil who had no actual or suggested ties to terrorism, and who recently had been through U. S. customs to boot.